

Sri Rupak Kumar Acharjee vs Smti Antara Nandi(Shil) on 27 January, 2017

THE HIGH COURT OF TRIPURA
AGARTALA
CIVIL REVISION PETITION No.140/2015

Sri Rupak Kumar Acharjee,
S/O Sri Shanti Bhusan Acharjee,
C/O Sri Pradip Kumar Ghosh,
Village - Manughat, P.O. Manughat,
P.S. Manughat, Langthrai Valley,
District - Dhalai, Tripura, Pin No.799275.

..... Petitioner.

--: Versus :-

1. Smti Antara Nandi(Shil),
D/O Sri Chitta Ranjan Nandi,
W/O Sri Dipan Shil, resident of Indranagar,
near Indranagar High School, P.O. Indranagar,
P.S. New Capital Complex, Agartala,
District - West Tripura.
2. Sri Dipan Shil,
S/O Sri Sridhar Chandra Shil,
resident of Indranagar, P.O. Indranagar,
P.S. New Capital Complex, Agartala,
District - West Tripura.

..... Respondents.

BEFORE THE HON'BLE THE CHIEF JUSTICE Counsel for the petitioners : Mr. J Majumder, Advocate. Counsel for the respondents : Ms. K Roy, Advocate, Ms. S Deb, Advocate, Mr. H Das, Advocate, Mr. P Chakraborty, Advocate, Ms. S Debnath, Advocate, Mr. S Chakraborty, Advocate.

Date of hearing : 16-01-2017.

Date of judgment & order : 27-01-2017

JUDGMENT & ORDER

In this civil revision filed under Article 227 of the Constitution, the petitioner is questioning the validity of the judgment dated 17-12-2007 passed by the learned Judge, Family Court, Agartala, West Tripura in Title Suit (Nullity) No.138 of 2007 declaring the marriage between the respondent No.1 and the respondent No.2 as null and void and also declaring the certificate of marriage obtained by them on 12-1-2007 as inoperative and null and void.

2. The petitioner is the second husband of the respondent No.1, whereas the respondent No.2 is the first husband of the respondent No.1. The case of the petitioner is that the marriage between the respondent No.1 and the respondent No.2 was solemnized on 14-12-2006 at Indranagar, and was thereafter duly registered before the Registrar, Hindu Marriage, West Tripura on 12-1-2007. According to the petitioner, he was not aware of this marriage nor was this fact disclosed to him by the respondent No.1. By suppressing her said subsisting marriage with the respondent No.2, the respondent No.1 entered into marriage with the petitioner on 29-11-2012 as per Hindu rites and customs. It is the allegation of the petitioner that when he met the respondent No.1 for the first time on 12-10-2012 at the house of her father, he had asked her if she had any previous relationship with any one else, she replied in the negative. On 27-3-2013, the respondent No.1 without telling him any reason left the house of the petitioner. On 1-8-2014, the petitioner got some information about the previous marriage between the respondent No.1 and the respondent No.2 whereupon he made an inquiry and managed to obtain the certified copy of the extract of the Hindu Marriage Register maintained in the Office of the Registrar, Hindu Marriage, West Tripura on 6-8-2014. Due to their cohabitation, a son was born to them on 6-11-2013. On 6-1-2014, the petitioner instituted a suit before the Family Court, Udaipur for restitution of his conjugal rights with the respondent No.1, which was contested by her by filing her written objection on several grounds. The respondent No.1, in turn, filed a complaint before the learned Chief Judicial Magistrate, Udaipur against the petitioner and his parents for commission of the offence punishable U/s 498-A IPC. A multiplicity of proceedings ensued thereafter with which we are not concerned herein.

3. It, however, transpired that Title Suit (Nullity) No.138 of 2007 had been filed by the respondent No.1 against the respondent No.2 before the Family Court, Agartala U/s 12(1)(C) of the Hindu Marriage Act, 1955 ("the Act" for short) to annul their marriage. To cut material facts short, the suit was contested by the respondent No.2 by filing his written statement on 21-11-2007 denying all the allegations. Apparently, on the same day, a joint application was filed by them for cancellation of their marriage registration certificate. The Family Court by an order on the same day rejected the joint application on the ground that the compromise was unlawful and fixed 4-12-2007 for order. On 4-12-2007, the Family Court heard both the parties and fixed 17-12-2007 for judgment. It was on 17-12-2007, the Family Court passed the impugned judgment under Order 12, Rule 6, CPC purportedly on the basis of the admission made by the parties in their pleadings. It is against this judgment that this civil revision is filed.

4. The main contention of Mr. J. Majumder, the learned counsel for the petitioner, in attacking the impugned judgment is that when there was collusion between the respondent No.1 and the respondent No.2 as evident from the filing of the joint application; the joint application was violative of, and has made a mockery, of the verification of their pleadings under Section 20(1) of the Act. He submits that the suit is nothing but a sham and fictitious one and was instituted by the respondents collusively to get over the rigours of the divorce law. Moreover, contends the learned counsel, there was really no admission within the meaning of Order 12, Rule 6, CPC warranting the passing of the decree passed by the trial court. Contending that the decree has the potential of creating the gravest public mischief to a divorce law enacted by Parliament, and is an abuse of process of Court, he strenuously urges this Court to set it aside. On the other hand, Ms. K. Roy, the learned counsel for the respondent No.1 supports the impugned decree and submits that no interference is called for.

5. I have given my earnest consideration to the rival submissions made by the learned counsel appearing for both the parties. I have also carefully perused the impugned judgment as well as the other materials on record. Section 23(1)(c) of the Act confers a discretion upon the court not to grant a decree of divorce to the petitioner unless it is satisfied that the petition is not presented or prosecuted in collusion with the respondent. In other words, if the court has reason to believe that the petition for divorce is filed by the petitioner in collusion with the respondent, it cannot grant a decree of divorce. Section 23(1)(c) of the Act is in the following terms:

"23. Decree in proceedings.--(1) In any proceeding under this Act, whether defended or not, if the court is satisfied that--

* * *

(c) the petition (not being a petition presented under Section 11) is not presented or prosecuted in collusion with the respondent, and

(e) the court shall decree such relief accordingly."

6. Thus, it is obvious that in divorce proceedings, the Court must, inter alia, satisfy itself that the petition is not presented or prosecuted in collusion with the respondent. It is appropriate that the Court granting a decree of divorce must make a brief reference to the circumstances, on which it believes that the petition is not inspired by collusion between the parties. In the instant case, on 21-11-2007, the learned Judge did not initially accept the joint petition for compromise filed by the respondents- wife and her husband on the ground that the compromise was not lawful and then proceeded to fix 4-12-2007 for order. On 4-12-2007, the learned Judge, after hearing the parties and after perusing their pleadings, observed that an order under Order 12, Rule 6 CPC would be passed and fixed 17- 12-007 for judgment. The judgment was accordingly passed on 17-12-2007 (the impugned judgment). From the impugned judgment, it now surfaces that the learned Judge took note of the fact that the husband respondent in para 7 of his written objection stated that if the prayer of his wife was granted, he had no objection, but held that no judgment could be passed under Order 23, Rule 3 CPC on the basis of the compromise petition on the grounds that the contents of the petition were not found correct and that there had been violation of Section 12(1)(c) of the Act. However, on the same breath, he held that there was admission by the respondent No. 2 in his written objection and, accordingly, declared that the marriage between the parties is as null and void and also that the certificate of marriage obtained by them on 12-1-2007 is inoperative and null and void with effect from that day. This is what it said:

"3. On perusal of the written objection and also on hearing the husband opposite party, it appears that the contents of the petition preferred by the petitioner is (sic) correct. The husband opposite party tried to put forward a defence but has failed to make out a constructive defence and, in fact, by his prayer in the written objection, has authenticated the pleading of the petitioner. As such, this amounts to admission. Therefore, without proceeding further, and waiting for determination of further questions between the parties, I proceed under Order 12, Rule 6 of CPC and pass

judgment accordingly."

7. This is, to say the least, intriguing. On the one hand, he did not accept the statement of the husband in the compromise petition on the ground that the contents therein are not true and are violative of the provisions of Section 12(1)(c) of the Act, but, on the other hand, notwithstanding the incorrectness of the petition filed by the petitioner, he proceeded to hold under Order XII, Rule 6, CPC that though the husband failed to make out a constructive defense, his prayer in the said written objection authenticated the pleading of the respondent No.1, which amounted to admission. Order 12, Rule 6, CPC reads thus:

"6. Judgment on admissions.--(1) Where admissions of fact have been made either in the pleading or otherwise, whether orally or in writing, the Court may at any stage of the suit, either on the application of any party or of its own motion and without waiting for the determination of any other question between the parties, make such order or give such judgment as it may think fit, having regard to such admissions.

(2) Whenever a judgment is pronounced under sub-rule (1) a decree shall be drawn up in accordance with the judgment and the decree shall bear the date on which the judgment was pronounced."

8. Order 12, Rule 6, CPC provide a remedy to a party to obtain speedy relief in respect of a fact which is admitted by the other party. Such admission in the written statement could be in respect of the entire claim made in the suit or even for a part of the claim for which decree could be passed separately. However, the expression "as it may think fit, having regard to such admissions" undoubtedly makes it clear that the provision is discretionary and not mandatory; it is, therefore, not incumbent on the Courts in all cases to pass a judgment upon admission. In other words, on the basis of mere admission made by the defendant, the decree need not always be granted in terms of the prayer made in the suit. The Court always has the duty to see whether the plaintiff is entitled under the law to get the relief sought for. The court should also see whether the suit is collusive meant to defeat law concerning matrimonial disputes etc. The court ought not to pass a decree mechanically based on admission or consent of parties. This is consistent with the provisions of Section 44, Evidence Act, which provides that a party to a suit or other proceeding may show that a judgment, order or decree, which is relevant under S.40, S.41 or S.42, was passed by Court which had no jurisdiction to pass it or is obtained by fraud or collusion. Thus, collusion is always a ground to annul any judgment obtained by collusion. Therefore, on the basis of the mere admission made by the defendant, a decree need not be granted by a Court, which has to be satisfied, among others, that the admission is not made in collusion with the petitioner. In the instant case, it is interesting to note that the respondent No.2 filed his written statement on 20-11-2007 wherein he vide para 7 had stated that the formalities of the registration of marriage was done according to law, but, on the same breath, he stated in the next sentence that as he was not interested to keep the relation, he had no objection if the Court allowed the prayer of the respondent No.1. At para 8 of the written statement, he again reiterated that he had no objection if the Court allowed the prayer of the respondent No.1 for declaring the marriage between him and the respondent No.1 as null and void. Then, on the next date i.e. on 21-11-2007, the respondents filed a joint petition for canceling their

registration certificate, which was not accepted by the trial court. Yet, on the basis of the prayer made in the written objection of the respondent, the trial court held that the averments made therein amount to admission under Order 12, Rule 6, CPC and, accordingly, passed the impugned judgment granting a decree of divorce upon the respondent No.1. It may be noted that the suit was instituted on 13-8-2007.

9. The question to be determined now is whether the impugned decree was obtained by the respondent No.1 in collusion with the respondent No.2. Collusion in a judicial proceeding is a secret arrangement between two persons that one should institute a suit against the other, in order to obtain the decision of a judicial tribunal for some sinister purpose. It may be of two kinds :- (1) when the facts put forward as the foundation of the judgment of the court do not exist; (2) when they exist, but have been corruptly pre-concerted for the express purpose of obtaining the judgment. □ See Wharton's Law Lexicon. Collusion implies no battle but a sham battle. Even stranger like the petitioner herein can avoid a decree on proof of collusion. This is exactly what the petitioner is intending to do in this case. However, a previous judgment cannot be upset on mere general allegation of collusion; it must be shown how, when, where and in what way the collusion was committed. Allegation of collusion like fraud must be specific. General allegations, however strong may be the views in which they are stated, are insufficient even to amount to an averment of collusion of which any Court ought to take notice. Collusion, like any fact, can be proved by circumstantial evidence and if the circumstances are such that no other inference except that of collusion can be deduced from them, a plea of collusion cannot be thrown out merely because no direct proof of it was furnished. In the instant, the respondent No.1 and the respondent No.2 had been having acrimonious matrimonial disputes in Court, both civil and criminal for many years. In the absence of sufficient evidence, it is not possible to say that there was collusion between the two respondents to enable the respondent No.1 to obtain the decree of divorce. Though many contradictions appear in the impugned judgment, the mere fact that the suit, the written statement as well as the joint petition were filed in quick successions, without anything more, cannot lead me to come to the conclusion that the suit is collusive. In this view of the matter, I am not inclined to interfere with the impugned judgment.

10. The result of the foregoing discussion is that there is no merit in this civil revision, which is, accordingly, dismissed. However, the parties are directed to bear their respective costs.

CHIEF JUSTICE